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February 25, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1086

By: Gollihare of the Senate

and

Newton of the House

An Act relating to voter registration; amending 26 O.S. 2021, Section 4-120, as last amended by Section 2, Chapter 357, O.S.L. 2023 (26 O.S. Supp. 2024, Section 4-120), which relates to cancellation of voter registrations; requiring cancellation of voter registration under certain circumstance; authorizing the Secretary of the State Election Board to conduct voter registration list comparison with certain entities; requiring provision of notice of non-citizenship to certain voter; requiring furnishing of proof of citizenship to certain county election board; providing for cancellation of voter registration under certain circumstance; defining term; authorizing promulgation of rules for certain purposes; amending 26 O.S. 2021, Section 7-103.2, as last amended by Section 2, Chapter 264, O.S.L. 2023 (26 O.S. Supp. 2024, Section 7-103.2), which relates to voter registration list; specifying qualifications for access to certain list; requiring application for certain access; prohibiting access to voter registration list for certain purpose; prohibiting transmission of list to certain foreign entities; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 4-120, as last amended by Section 2, Chapter 357, O.S.L. 2023 (26 O.S. Supp. 2024, Section 4-120), is amended to read as follows:

Section 4-120. A. The registration of any registered voter shall be canceled only for one of the following reasons:

1. Written notice from the voter pursuant to Section 4-120.1 of this title;

2. Death;

3. Conviction of a felony;

4. Judicial determination of mental incapacitation under Title 30 of the Oklahoma Statutes;

5. Registration in another county or state;

6. Failure to respond to a confirmation of address mailing and failure to vote as prescribed in Section 4-120.2 of this title;

7. The surrendering of the voter's Oklahoma driver license to Service Oklahoma upon being issued a driver license in another state; ~~or~~

8. Being excused from jury duty for not being a citizen of the United States; or

9. Determination that the voter is not a citizen of the United States.

B. For purposes of this section, paragraphs 5 and 7 of subsection A of this section shall constitute confirmation from the

1 voter to cancel his or her voter registration due to a change of
2 residence.

3 C. A list of voter registrations that were canceled during the
4 previous twenty-four (24) months, and the reason for the
5 cancellation, shall be made available to the public.

6 SECTION 2. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 4-122 of Title 26, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The Secretary of the State Election Board may compare the
10 list of registered voters in this state with the database of any
11 federal, state, or local agency, board, or commission that maintains
12 information regarding the citizenship of persons residing in this
13 state.

14 B. If a registered voter definitively matches a person who is
15 recorded in a database described in subsection A of this section as
16 not being a citizen of the United States, the Secretary or his or
17 her designee shall send a notice of such finding to the voter. The
18 voter shall, within thirty (30) days from the date the notice is
19 sent to the voter, present proof of citizenship to the secretary of
20 the county election board in the county where the voter is
21 registered.

22 C. If a voter fails to present proof of citizenship within the
23 prescribed time to the county election board or otherwise provides
24 notice that the voter is not a citizen, then the voter's

1 registration shall be canceled, and the voter shall be reported to
2 the appropriate district attorney and United States attorney.

3 D. For purposes of this section, "proof of citizenship" shall
4 mean the requirements for proof of citizenship pursuant to the
5 provisions of the REAL ID Act of 2005, Public Law No. 109-13.

6 E. The Secretary shall promulgate rules and procedures as
7 necessary to effectuate the provisions of this section.

8 SECTION 3. AMENDATORY 26 O.S. 2021, Section 7-103.2, as
9 last amended by Section 2, Chapter 264, O.S.L. 2023 (26 O.S. Supp.
10 2024, Section 7-103.2), is amended to read as follows:

11 Section 7-103.2. A. 1. County election boards shall maintain
12 a current list of all registered voters in each precinct, which will
13 reflect the address and party affiliation of each voter. The list
14 shall be public information.

15 2. The list shall only be shared with a court system if that
16 court system agrees to regularly provide the names of persons
17 convicted of a felony in that court system to the Secretary of the
18 State Election Board and the appropriate secretary of a county
19 election board, or if the court system is required by state law to
20 provide such information.

21 3. The list shall note any voter for whom a first-class mailing
22 from the county election board or the State Election Board was
23 returned undeliverable.

1 B. 1. The Secretary of the State Election Board shall ensure
2 that an electronic copy of the voter registration list described in
3 subsection A of this section is made available ~~to the public,~~ free
4 of charge, to the following:

5 a. bona fide residents of this state who are citizens of
6 the United States,

7 b. official representatives of political parties
8 recognized by the laws of this state,

9 c. candidates for office in this state and their official
10 representatives, or

11 d. other persons authorized by state law.

12 2. Any person accessing the voter registration list shall be
13 required to complete an application form approved by the Secretary
14 that shall include:

15 a. the legal name, address of residence in this state,
16 telephone number, and electronic mail address of the
17 person,

18 b. an attestation under penalty of perjury that the
19 person meets the legal requirements to access the
20 list, and

21 c. any additional information deemed necessary by the
22 Secretary.

23 3. It shall be unlawful for the recipient of a voter
24 registration list to use such list for commercial purposes.

1 Provided, for the purposes of this section, a commercial purpose
2 shall not include the use of the voter list by campaigns, political
3 parties, government officials, or public opinion pollsters to
4 contact or interact with voters.

5 4. It shall be unlawful for the recipient of a voter
6 registration list to knowingly provide such list to a foreign
7 national, foreign commercial interest, or foreign government entity.

8 SECTION 4. This act shall become effective November 1, 2025.

9 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
February 25, 2025 - DO PASS AS AMENDED BY CS

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